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Nº 24

COLLECTION

SELLERS

Selling During a Separation

Separation or divorce – sell with clarity and peace of mind.



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BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

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COLLECTION SELLERS · GUIDE NO. 24

Selling during a separation

Separation or divorce — selling the property with clarity and calm

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Selling the house during a separation or divorce adds an emotional and legal layer to an already demanding transaction. With a clear framework and the right professionals, we can get there in a fair and peaceful way.

This guide outlines the key points: the legal status of the property according to your situation, the decisions to be made together, the sharing of the proceeds of the sale, and the role of a neutral broker.

Informative content, not legal advice: rely on a notary or lawyer. Each chapter ends with a lined “My Notes” page.

Selling during a separation adds an emotional charge to an already demanding process. This guide helps you stay on track: understanding the status of the property, choosing between selling, repurchasing or waiting, setting the price together, sharing the product and remaining functional despite the conflict.

The common thread: structure and delegate so that emotion does not cost money.

CHAPTER

Understanding Property Status

> *Know who owns what depending on your situation.*

The rights to the property depend on your situation: married (with the rules of family patrimony), civilly united, or de facto spouses (whose rights differ depending on whether or not they are co-owners of the title). This is a crucial and often misunderstood point.

- Married / civilly united: family residence is governed by specific rules.
- Common-law partners: rights depend largely on who is registered on the title.
- A legal opinion clarifies your exact situation.

Your rights to property depend on your status: married/civilly united (family assets), or de facto spouses (writing and title take precedence). Clarifying who owns what is the first step - it conditions sharing and future decisions.

> EMILIE'S ADVICE
>
> *Never assume your rights to the house without legal advice, especially in a common-law relationship. Clarifying the status from the start avoids painful conflicts and blockages later.*

CHAPTER

Decide: sell, buy back or wait

> *Choose the option that suits both parties.*

- Selling and sharing the product: often the clearest solution.
- One buys back the other's share: possible if the buyout is financeable (borrowing capacity, net worth).
- Wait (e.g. until a specific time): sometimes chosen, but to be regulated by written agreement.

Each option has financial, tax and practical implications. A clear decision, put in writing, avoids misunderstandings.

Three options: sell and share (often the most neutral), have one spouse buy out the other's share, or wait (rarely ideal). The right choice depends on your means, the feasibility of the buyout and your need to turn the page. Decide together, in writing if possible.

> EMILIE'S ADVICE
>
> *Decide on the option and put it in writing, ideally with your advisors. A clear agreement on "who does what and when" greatly reduces the tension in the process.*

CHAPTER

Set the price and manage the sale together

> *Sell effectively despite the context.*

Like any sale, we start from a comparative analysis to set a fair price. The difficulty is rather human: two people must agree on the price, the visits, and the offers to accept.

- Rely on neutral facts (ACM) to depersonalize the price.
- Define in advance how decisions (offers) will be made.
- Keep the property presentable despite the context.

Like any sale, we start from a comparative analysis to set a fair price and we prepare the property. The difficulty is coordination between two people in a tense context: entrust logistics and communication to a neutral broker to prevent each decision from becoming a confrontation.

> EMILIE'S ADVICE
>
> *Entrust the sale to a neutral broker who speaks to both parties as equals. A professional intermediary reduces friction and keeps the transaction on track.*

CHAPTER

Share the proceeds of the sale

> *Clarify sharing and financial aspects.*

The sharing of the net proceeds (after repayment of the mortgage and costs) depends on your legal situation and your agreements. The notary can manage the distribution at closing according to the agreed instructions.

Also anticipate your needs for the future: everyone will probably have to find new accommodation. Understanding your ability to purchase or lease aftermarket is part of an informed decision.

The sharing of the net proceeds (after repayment of the mortgage and fees) depends on your status and your agreements. Clarify it in advance and, if necessary, have it legally regulated: unclear sharing is a major source of last-minute conflicts.

> EMILIE'S ADVICE
>
> *Have it clarified in writing, before closing, how the net proceeds will be shared. The notary will follow these instructions; improvising it on the day of signing is a guaranteed source of conflict.*

CHAPTER

Remain functional: support and communication

> *Sell calmly despite the conflict.*

Selling during a separation adds an emotional dimension to an already demanding process. A few benchmarks help you stay on course:

- Agree on the **key decisions** (price, deadlines) in advance, in writing if possible.
- Go through **neutral intermediaries** (broker, mediator) to defuse.
- Separate the **financial issues** personal tensions.
- Be accompanied (notary, legal advisor).

The objective: a transaction that is concluded properly, without the conflict causing both parties to lose money.

Remaining functional despite conflict protects your money: agree on key decisions in advance, work through neutral intermediaries and separate financial issues from personal tensions. A broker as a single channel of communication defuses a lot of tension.

> EMILIE'S ADVICE
>
> *Entrusting the sale to a neutral broker avoids many direct confrontations. It becomes the single channel of communication on the transaction, which protects the sale - and often your energy.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Obtain a legal opinion on my rights according to my status.
2. Clarify who has title and equity in the property.

Within 30 days

1. Decide (sell, buy back, wait) and put the agreement in writing.
2. Set a price by ACM and agree on the method of deciding on offers.

Then

1. Entrust the sale to a neutral broker and prepare to share the proceeds.

To move forward

1. Clarify the status of the property and the mode of sharing.
2. Entrust the sale to a neutral broker serving as a communication channel.

REFERENCES

Resources & glossary

- Family assets: rules governing the residence of married couples/civil unions.
- De facto spouses: rights depending largely on registration on the title.
- Net proceeds: amount after repayment of the mortgage and costs.
- Redemption of share: option where one spouse buys the share of the other.
- Neutral broker: intermediary who facilitates the sale between the parties.

- Family assets: protections for married couples/civil unions.
- De facto spouses: without automatic protections; the title and the writing take precedence.
- Purchase of share: one spouse buys the other's share to keep the property.
- Net proceeds: remaining amount after mortgage and costs, to be shared.
- Mediation: neutral support to facilitate decisions.

GO FURTHER

Quiz - test yourself

1. The rights to the house depend first of all:

A) The color of the walls

B) Your status (married, civil union, de facto partner)

C) From the notary

D) From the buyer

2. For de facto spouses, rights often depend on:

A) You're welcome

B) Who is registered in the title

C) Age

D) From the city

3. Often the clearest solution is:

A) Wait indefinitely

B) Sell and share the product

C) Do not decide anything

D) Destroy the house

4. Redemption by one of the spouses is possible if:

A) Impossible always

B) The buyout is financeable (capacity, net worth)

C) Prohibited

D) Free

5. To depersonalize the price, we rely on:

A) Emotions

B) Comparative analysis (ACM)

C) Chance

D) Municipal assessment alone

6. A neutral broker:

A) Aggravates conflicts

B) Reduces friction between parties

C) Chooses for you

D) Is useless

7. The sharing of the net proceeds must be:

A) Improvised to the notary

B) Specified in writing before closing

C) Decided by buyer

D) Ignored

8. Before assuming your rights, you must:

A) Guess

B) Obtain legal advice

C) Ask the neighbor

D) Nothing

Answers

1. B - The statute changes the rules (chap. 1).

2. B - The title is decisive (chap. 1).

3. B - Selling and sharing clarifies (chap. 2).

4. B - You must be able to finance the buyout (chap. 2).

5. B - Neutral facts (chap. 3).

6. B - She speaks to both as equals (chap. 3).

7. B - The notary follows the agreed instructions (chap. 4).

8. B - Especially in common-law relationships (chap. 1).

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You now have the right keys in hand.

Every real estate journey is different.

If you would like to go further,
I would be happy to discuss
your project with you.



Make informed decisions.
Choose with confidence.
Live without regrets.
See you soon,
Emilie ☺

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